

Line 3

Case Name: *Rhene Cruz, et al. v. General Motors, LLC, et al.*

Case No.: 22CV393759

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Rhene Cruz and Ricardo Cruz move under a signed Civil Code Section 998 Offer to Compromise (“998 Offer”) and the Song-Beverly Consumer Warranty Act (“SBA”), California Civil Code § 1794(d) for an award of attorneys’ fees, costs, and expenses in the total amount of \$33,034.63, consisting of: (1) \$21,877.50 in attorneys’ fees; (2) a 1.35 multiplier enhancement of \$7,657.13, and (3) \$3,5000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion. Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 12, 2026).

This Motion is made on the grounds that Plaintiffs are the prevailing party under the SBA claims at issue in this lawsuit; hence, Plaintiffs are entitled to statutory attorneys’ fees, costs, and expenses under Section 1794(d). *Id.* at 2:12-14.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

A. Factual & Procedural History

On August 16, 2020, Plaintiffs purchased a 2020 Chevrolet Tahoe. The vehicle was equipped with a 5.3L V8 355hp 383ft. lbs. engine and 6-Speed Automatic transmission and came with Defendant’s express warranty. During the warranty period, the vehicle suffered from transmission defects that substantially impaired its use, value, and safety. Declaration of Dhara Chandy In Support of Motion (“Chandy Decl.”) at ¶¶ 3-5.

Plaintiffs presented the vehicle to Defendant’s authorized repair facilities on multiple occasions for repair of these defects. Despite these repair attempts, Defendant was unable to conform the vehicle to the applicable express warranties within a reasonable number of attempts. Plaintiffs made demands upon Defendant to repurchase or replace the vehicle pursuant to the Song-Beverly Consumer Warranty Act, but Defendant refused. Motion at 4:17-21.

Plaintiffs filed their Complaint on January 26, 2022, asserting four causes of action under the Song-Beverly Consumer Warranty Act. Defendant filed its Answer on March 14, 2022. The case proceeded through discovery, case management conferences, mediation

on May 1, 2024, and trial preparation over approximately three years.

On February 5, 2025, GM served a Section 998 Offer for \$130,000 in exchange for the subject vehicle plus prejudgment interest and attorneys' fees, costs, and expenses. On February 18, 2025—the day of trial—GM served a second Section 998 offer in the amount of \$165,000.00 in exchange for the subject vehicle plus pre-judgment interest in the amount of \$50,584.95, in the total amount of \$215,584.95, plus attorneys' fees, costs, and expenses. The February 18, 2025 offer document provides that:

- “at Plaintiffs’ election, Plaintiffs’ attorney’s fees, expenses and costs that have been reasonably incurred pursuant to Civ. Code, § 1794, subd. (d) may be determined by the Court via noticed motion.” And
- “For purposes of any such motion, GM will agree that Plaintiff is the prevailing party.”

Chandy Decl., Ex. 3 ¶ 3. (GM’s CCP § 998 Offer of Compromise) (dated: Feb. 18, 2025). Plaintiffs accepted that offer that same day.

Counsel filed its Notice of Settlement on February 18, 2025, the same day Plaintiffs accepted GM’s § 998 Offer. Under Cal. Rules of Court, rule 3.1385(b), an automatic dismissal would occur 45 days later, on April 4, 2025, if no Request for Dismissal were filed.

Plaintiffs’ Motion for attorneys’ fees was electronically filed on January 12, 2026, approximately eleven months after the Notice of Settlement was filed and nine months after the automatic dismissal deadline under rule 3.1385(b).

B. Plaintiffs’ Fee Request

In this Motion, Plaintiffs seek \$21,877.50 in lodestar attorneys’ fees for 43 hours of attorney and staff time through settlement, a 1.35 multiplier totaling \$7,657.13, and anticipated fees for opposition and hearing work initially noticed at \$3,500 but increased in the reply papers to \$3,885, for a total claimed recovery of \$33,034.63. GM opposes, arguing the motion is untimely and, if considered on the merits, should be reduced to \$6,887.25 at most.

II. Regarding timeliness, the Court finds Good Cause to extend the deadline under Rule 3.1702(d) and reach the merits of the Motion.

A. Legal Standard

A motion claiming attorney’s fees must be served and filed within the time for filing a notice of appeal. Once a qualifying terminating event is identified, that deadline is mandatory, and a late motion may be denied as untimely. In the context of a Section 998 settlement, an automatic dismissal under Rule 3.1385(b) is sufficient to trigger the rule 3.1702 deadline even without a separately entered judgment or signed dismissal order.

However, good cause to extend the rule 3.1702 deadline is flexible and may turn on good faith, absence of gamesmanship, and lack of prejudice to the opposing party. (*Wash v. Banda-Wash*, No. FO85028M (Cal. Ct. App. 2025).)

B. Analysis

The Court finds that the motion is technically untimely under *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644. In *Hatlevig*, the Court of Appeal held that an automatic rule 3.1385(b) dismissal after settlement triggers the rule 3.1702 fee-motion deadline even without a separately entered judgment or signed dismissal order. The facts here are materially identical to *Hatlevig*: a Song-Beverly case, a Section 998 offer, acceptance on the day of trial, and a Notice of Settlement filed with the court, followed by the prospect of an automatic rule 3.1385(b) dismissal 45 days later if no Request for Dismissal is filed. Under *Hatlevig*, the automatic dismissal deadline of April 4, 2025, triggered the rule 3.1702 clock. This Motion filed on January 12, 2026, nearly one year after the Notice of Settlement and approximately nine months after the automatic dismissal deadline, is untimely under the 180-day borrowed appeal period.

Plaintiffs contend that rule 3.1702's deadline is keyed to the time for filing a notice of appeal, and because dismissals following § 998 settlements are ministerial and non-appealable under *H.D. Arnaiz, Ltd. v. County of San Joaquin*, no trigger event ever occurred. The first premise is correct: rule 3.1702 borrows the appeal period. But the second premise overstates *H.D. Arnaiz*. While *H.D. Arnaiz* addresses appealability and concludes that ministerial settlement dismissals are not appealable, it does not squarely hold that a ministerial settlement dismissal can never function as the terminating event for purposes of rule 3.1702. *Hatlevig* answers the specific question presented: a settlement termination that finally disposes of the action is sufficient to trigger the fee-motion deadline even if no formal judgment was entered.

Plaintiffs further argue that *Hatlevig* did not address the plain-text argument and therefore does not foreclose it. This somewhat understates *Hatlevig*'s reach. While precision about the scope of precedent is appropriate, *Hatlevig* did decide the dispositive issue: whether an automatic settlement dismissal suffices to trigger rule 3.1702. The fact that *Hatlevig* may not have parsed every variant of the textual objection does not make its holding noncontrolling on materially identical facts.

Plaintiffs also argue that *Hatlevig*'s functional approach conflicts with *Meinhardt v. City of Sunnyvale* (2024) 16 Cal.5th 643, which prohibits construing non-judgment filings as judgments to dismiss a fee motion as untimely. The Court does not see a conflict. *Meinhardt* is a California Supreme Court decision emphasizing textual rigor in appeal-time rules, but it did not address the specific post-Section 998, automatic-dismissal context addressed by *Hatlevig*. A functional-equivalence approach in that narrow context—where the settlement itself has been accepted and the dismissal is the automatic consequence of settlement and settlement notice—is not necessarily inconsistent with *Meinhardt*'s textualism. The question is not whether courts may invent a trigger out of whole cloth, but whether a settlement-ending dismissal is the operative terminating event contemplated by the existing rules.

C. The Court finds Good Cause to extend the deadline

All that said, although the motion is technically untimely, Cal. Rules of Court, rule 3.1702(d), permits the Court to extend the deadline for good cause. (*Wash v. Banda-Wash*, No. Fo85028M (Cal. Ct. App. 2025).) The Court finds good cause to extend the deadline and reach the merits.

First, there is no indication of gamesmanship here. The settlement itself expressly contemplates this noticed-fee Motion. GM’s own February 18, 2025 Section 998 offer expressly offered Plaintiffs this choice: (a) GM will “pay Plaintiff’s attorney fees, expenses at costs in the amount of \$20,000” or (b) “at Plaintiffs’ election, Plaintiffs’ attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion.” Chandy Decl., Ex. 3 ¶¶ 2-3.

Here, Plaintiff’s counsel chose choice (b)—for fees to be determined by this noticed Motion. This choice in accordance with the plain terms of GM’s offer undermines any argument that Plaintiffs have engaged in tactical abandonment or sandbagging of the fee claim. Rather, Plaintiffs affirmatively elected to pursue fees by noticed motion rather than accepting the offered \$20,000, a choice that only makes sense if the fee motion was contemplated as part of the settlement process.

Second, the timing dispute was genuinely unsettled from the perspective of April 2025. *Hatlevig* was decided in 2026, after the alleged trigger event. Plaintiffs did not have fair notice in April 2025 that an automatic rule 3.1385(b) dismissal would be treated as the event starting the rule 3.1702 clock. While applying *Hatlevig* to declare this Motion late is appropriate, yet refusing any extension despite that lack of notice would effectively impose a shortened deadline retroactively. And to impose a shortened deadline retroactively is not fair.

Third, GM identifies no concrete prejudice from the delay beyond having to oppose the Motion on the merits. The underlying fee claim was preserved by the settlement itself, which expressly provided for fee recovery. The only prejudice is the procedural burden of responding to a late motion, which is the ordinary consequence of a Court granting an extension.

To be sure, the delay in filing here was substantial: nearly eleven months after the April 2025 trigger date. But substantial delay alone does not preclude relief where good cause is shown. Taking into account the settlement’s express contemplation of a later noticed fee motion, the absence of gamesmanship, and the genuine legal uncertainty before *Hatlevig* together, and in the broad exercise of its discretion, the Court finds Good Cause under the flexible standard of rule 3.1702(d) to extend the deadline and reach the merits of the Motion now.

III. Plaintiffs as the prevailing parties are entitled to their reasonable attorneys’ fees and costs under Civil Code Section 1794(d).

A. Legal Standard

Under California Civil Code section 1794(d), a prevailing buyer in an action brought under the Song-Beverly Consumer Warranty Act shall be allowed by the court reasonable attorney's fees and costs. (Civ. Code, § 1794, subd. (d).) The prevailing party in a § 998 settlement is treated as prevailing for purposes of any fee-shifting statute.

B. Analysis

Plaintiffs are prevailing buyers under Civil Code Section 1794(d). They filed their Complaint on January 26, 2022, alleging four Song-Beverly Consumer Warranty Act causes of action arising from transmission defects in a 2020 Chevrolet Tahoe. After litigating through discovery, mediation, and trial preparation, they accepted Defendant's § 998 offer in the amount of \$165,000.00 in exchange for the Subject Vehicle plus pre-judgment interest in the amount of \$50,584.95, in the total amount of \$215,584.95, plus attorneys' fees, costs and expenses GM does not materially dispute that section 1794(d) is the governing fee statute if the motion is procedurally proper. The Court finds Plaintiffs are prevailing buyers entitled to a mandatory reasonable fee award under Section 1794(d). (Civil Code § 1794(d).)

IV. Lodestar Calculation: On the Reasonableness of the hours & rates of the attorneys' fees sought here.

A. Legal Standard

The standard method for calculating a reasonable attorney's fee is the lodestar method: multiplying the number of hours reasonably expended by a reasonable hourly rate prevailing in the community for similar work. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).) The moving party bears the burden of submitting evidence, typically through counsel declarations and contemporaneous billing records, to support the hours and rates claimed. (*Id.*) Once a prima facie showing is made, the burden shifts to the opposing party to make specific objections to the time entries or rates. The Court may then adjust the lodestar upward or downward. The Court must award only fees for time that was actually and reasonably incurred. (Civil Code § 1794(d).)

B. Plaintiffs make a prima facie showing

Here, Plaintiffs made a prima facie showing by submitting contemporaneous billing records. Exhibit 1 of the Chandy Declaration is a true and correct copy of SLP's contemporaneous billing records. Plaintiffs claim \$21,877.50 in attorneys' fees for 43 hours of work. Chandy Decl., Ex. 1. The hourly rates range from \$285.00 to \$650.00 per hour.

In its Opposition, GM does not challenge the hourly rates sought here. But that concession is limited to the rates themselves. GM does object, with some force and persuasiveness, to the hours billed, the staffing decisions, and the nature of the work performed.

C. On GM's Objections on Plaintiffs' Counsel Use of Litigation Templates and Inefficiencies

GM contends that in this case Plaintiffs' counsel recycled templated documents in the Complaint, discovery responses, discovery requests, objections to deposition notices, expert designation, motions in limine, notices to appear, and trial documents. GM supports this objection with side-by-side comparisons in the Keshishian declaration. GM further states that on "February 18, 2025, Counsel served various 'trial documents,' including an exhibit list, jury list, jury instructions, and statement of the case. Counsel's trial documents are based on templates that Counsel has filed against GM in Song-Beverly cases over and over again" Decl. of Natalie Keshishian in Opp'n to Mot. ("Keshishian Decl.") at ¶ 14 & Exs. Q and R thereto. Quite true.

This evidence is sufficient to justify scrutiny and some reduction of the billing entries for templated work, but is not sufficient to justify wholesale rejection of all claimed hours. Template use can reflect efficiency, and efficiency is not a basis to deny fees under section 1794(d). (Civil Code § 1794(d).) At the same time, section 1794(d) compensates only time actually and *reasonably* incurred. (*Id.*) Where side-by-side comparisons show, as they do here, that large portions of a filing were substantially recycled, the Court may reduce billed drafting time if the claimed hours appear disproportionate to the customization required.

Plaintiffs respond that many tasks still required case-specific adaptation to this vehicle, this repair history, this settlement posture, and this trial setting, as reflected in work on a repair chronology documenting the vehicle's defects and repair history, their Motions in Limine and supporting documents, and trial documents, including Exhibit List, Jury Instructions, and Statement of the Case.

Taking all this into account, after careful review of the voluminous hundreds and hundreds of pages submitted by the papers in support and opposition to this Motion, and in the broad exercise of its discretion, the Court finds that while GM's template evidence proves some overbilling risk and warrants some reduction of the fees sought, not that all templated work is non-compensable.

D. On GM's Objection that Plaintiffs overstaffed this case with too many attorneys

GM contends that despite billing just 43 hours, **18** different timekeepers billed on this matter. Plaintiffs reply that "[o]nly 6 attorneys accounted for 25.8 hours out of the 43.0 total hours billed (i.e., approximately 60%) with other attorneys performing non-duplicative tasks" Reply at 3:19-20.

GM's headcount objection is less persuasive than its template argument. The relevant inquiry is actual duplication—whether two lawyers billed for the same hearing, conference, or drafting task in a redundant way. Plaintiffs' showing that only six attorneys performed the bulk of the work, with others handling discrete nonduplicative tasks, undermines the force of GM's abstract headcount objection. GM's papers do not identify

substantial examples of redundant billing by multiple attorneys for overlapping work.

Accordingly, in the broad exercise of its discretion, the Court here will not reduce the fees sought simply because 18 timekeepers appeared on the file.

E. On GM’s objection that Plaintiffs are seeking an award of fees for nonlawyer clerical and administrative tasks

GM specifically challenges 2.8 hours of clerical/administrative tasks billed at attorney rates. The described tasks—scheduling, cover sheets, assembling and filing—are ordinarily *not* compensable at attorney rates under California’s reasonableness standard in the context of awarding reasonable attorneys’ fees. Simply put, clerical tasks are not attorney work. Accordingly, in the broad exercise of its discretion, the Court deducts those 2.8 hours from the lodestar sought by Plaintiffs here.

F. On GM’s objection that Plaintiffs are seeking an award of fees for Case-Management and administrative work

GM objects to time spent on case-management conferences, trial-setting conferences, posting jury fees, and related administrative work. These objections justify only limited reduction. The record reflects that those events occurred, including preparing for and attending Case Management Conference, the Trial Setting Conference, revising and finalizing Plaintiffs’ Notice of Posing of Jury fees, and settlement-offer activity that productively resulted on February 18, 2025, on the day of trial, GM making a second Section 998 offer in the amount of \$165,000.00 that settled this case. Chandy Decl. at ¶¶ 14-43. In the broad exercise of its discretion, the Court finds that in this Song-Beverly case litigated to the day of trial, those categories are generally compensable attorney work.

G. Calculation of Adjusted Lodestar

Weighing all these competing considerations discussed above, after reviewing all the voluminous papers, evidence, and exhibits for and against the award of attorneys’ fees sought here, and in the broad exercise of its discretion, the Court hereby reduces the requested merits lodestar by 25 percent to account for the proven clerical time (2.8 hours) and the partially persuasive template objection, while rejecting the more sweeping reductions that GM seeks. This 25 percent reduction reflects both the demonstrated clerical-task problem and the reality that some templated work required less customization than Plaintiffs acknowledge, without accepting GM’s extreme position that all template-based billing is non-compensable.

Accordingly, applied to the claimed \$21,877.50 in attorneys’ fees for 43 hours of work, a 25 percent reduction yields an award of **\$16,408.13** in reasonable attorneys’ fees that the Court awards to Plaintiffs here.

V. In the broad exercise of its discretion, the Court does not award a multiplier enhancement in this Song-Beverly case.

A. Legal Standard

A multiplier is permissible but discretionary. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).) The Court may deny enhancement in a routine Song-Beverly case where contingent risk is reduced by mandatory fee shifting and the enhancement would double-count factors already reflected in the lodestar. (*Id.*) Contingency risk is reduced in fee-shifting contexts because the statute guarantees recovery of a reasonable fee. (*Id.*)

B. Analysis

In this case, Plaintiffs seek a 1.35 multiplier based on the result obtained for Plaintiffs, the risks undertaken by counsel in prosecuting this matter on a contingency basis, and the delay in payment of fees. In support of their request to apply a multiplier, Plaintiffs emphasize that they recovered \$165,000.00 in exchange for Subject Vehicle plus pre-judgment in the amount of \$50,584.95 in the total amount of \$215,584.95 in restitution.

The Court finds that this case is a routine, non-novel Song-Beverly case about transmission defects in a single vehicle, albeit one that was litigated to the day of trial. The result was strong—indeed favorable—with a total settlement package exceeding \$215,000. However, the strength of the result is adequately reflected in the compensable lodestar itself and does not independently justify enhancement in this case. Moreover, mandatory fee shifting under section 1794(d) reduced the contingent risk that counsel faced as compared with a pure contingency case with no guaranteed fee recovery. Awarding a contingency enhancement on top of already accepted market rates would risk the double-counting concerns identified in the relevant authorities. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).)

Weighing all these competing considerations, after reviewing all the voluminous papers, evidence, and arguments for and against the application of a multiplier here, the Court denies the requested 1.35 multiplier and awards no multiplier at all.

VI. On the award of fees-on-fees here

A. Legal Standard

Fees incurred litigating the fee motion are recoverable. (*Frym v. 601 Main St. LLC* (2022) 82 Cal.App.5th 613.) But when a movant substantially increases the amount of fees sought in its reply papers without prior notice in the moving papers, fairness requires that the increased amount not be awarded absent an opportunity for the opponent to respond. (*Id.*)

B. Analysis

The moving papers noticed \$3,500.00 in estimated fees to read and reply to the opposition. But Plaintiffs' reply later sought \$3,885 in fees-on-fees for reply and hearing work. That's an eleven percent increase,² which the Court finds to be a substantial increase.

When a movant substantially increases the amount of fees sought in reply without prior notice in the moving papers, fairness requires that the increased amount *not* be awarded absent an opportunity for the opponent to respond. (*Frym v. 601 Main St. LLC* (2022) 82 Cal.App.5th 613.) Plaintiffs should have noticed the increased amount in the moving papers or sought leave to amend the fee request.

Accordingly, in the broad exercise of its discretion, the Court hereby caps and awards recoverable fees-on-fees at the noticed amount of **\$3,500**, which properly accounts for work on the opposition and reply. Because the timeliness issue required substantial reply work and the opponent has had adequate notice and opportunity to respond to the \$3,500 amount sought, this award of \$3,500 for fees-on-fees here is reasonable.

VII. On the award of reasonable costs and expenses here

A. Analysis

While the title of this Motion is "For Attorneys' Fees, Costs, and Expenses," the quantified request specified in the moving papers is fee-only. There is no separately itemized memorandum of costs or discrete nonfee expense request in the moving papers or in the supporting Declaration or supporting Exhibits. Section 1032(b) and section 1033.5 provide the framework for awarding costs, but those sections require itemization, and the moving papers do not provide it here.

Accordingly, the Court **DENIES** any separate award of costs or expenses beyond the attorney-fee amounts addressed above.

VIII. Conclusion & Order

For all the reasons explained in detail above, and in the broad exercise of its discretion, the Court **GRANTS IN PART** and **DENIES IN PART** Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses as follows. Specifically, the Court **ORDERS**:

- The Court awards Plaintiffs attorneys' fees in the amount of **\$16,408.13**, reflecting a 25 percent reduction from the claimed lodestar to account for clerical tasks and template overbilling.

² $3,855 - 3,500 = 355$. $355 \div 3,500 = 0.1014$. $0.1014 \times 100 = 10.14\%$.

- In addition, the Court awards fees-on-fees in the amount of **\$3,500.00**, the amount noticed in the moving papers.
- The Court **DENIES** the requested 1.35 multiplier enhancement.
- The Court **DENIES** any separate award of costs or expenses because the moving papers did not itemize or provide any evidence of any costs and expenses.
- Accordingly, the Court hereby awards Plaintiffs a total award of **\$19,908.13** for their reasonable attorneys' fees in this case, which equals the reduced lodestar amount of \$16,408.13 plus the fees-on-fees of \$3,500.00 awarded above.
- **GM will pay Plaintiffs \$19,908.13 for their reasonable attorneys' fees in this case within 30 days of today.**

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Alpha Anderson v. Alta Mesa Cemetery Association, et al.*

Case No.: 24CV442364

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Alpha Anderson (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) and California Rules of Court 3.1385(2) and 3.1202 to reinstate the case on the docket and to set a trial date. Notice of Motion (the “Motion”) at 1:23-2:3 (filed: Jan. 20, 2026).

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

Chronology & Procedural Posture

This action arises from a slip and fall that occurred on or about July 3, 2022, while Plaintiff was lawfully on the Premises as an invitee to Defendants. Plaintiff failed the Complaint on July 2, 2024. California Rule of Court 3.110(b) requires “[t]he Complaint must be served on all named defendants and proofs of serve on those defendant must be filed with the court within 60 days after the filing of the complaint.” C.R.C. 3.110(b). When Plaintiff failed to file a proof of service on Defendants by the 60-day deadline, the Court gave Plaintiff multiple extensions to file the required proof of service, including by setting multiple Order to Show Cause (“OSC”) hearings to dismiss the case for failure to serve on February 7, 2025 and July 2, 2025.

Despite Plaintiff note failing the required proof of service by the second OSC of July 2, 2025, Judge Hayashi at that July 2, 2025 graciously extended for the third time Plaintiff’s time to do so by continuing the OSC to October 29, 2025. When Plaintiff’s counsel appeared at the October 29, 2025 hearing and advised Judge Parrett, who in the interim had been assigned as the Case Manager of this case, that Plaintiff still—after two OSCs and over a year after the Complaint was filed—had neither served nor filed the required proof of service on Defendants, Judge Parrett right then dismissed this case, without prejudice, for Plaintiff’s failure to serve Defendants. Minute Order (filed: Oct. 29, 2025).

Evidently having gotten the attention of Plaintiff’s counsel at the October 29, 2025 hearing, Plaintiff’s counsel the very next day on October 30, 2025 served all Defendants and filed the required Proof of Service the following day on October 31, 2025. Proof of